

SPRING 2026 " FINAL EXAMINATION " SET 2

Instructions: This examination consists of four parts. You have four (4) hours to complete the exam. This is a closed-book examination except for the Model Penal Code provided. Write legibly and organize your answers clearly. Good luck.

PART I: MULTIPLE CHOICE (36 Points " 12 Questions @ 3 Points Each)

Instructions: Select the BEST answer for each question. Each question has a complex fact pattern. Be prepared to justify your answer with reference to specific MPC sections and common law principles.

QUESTION 1

Marcus, a bouncer at "The Rusty Nail," observed Damian attempting to enter with a concealed knife. Marcus grabbed Damian by the collar, spun him around, and shoved him toward the exit. Damian stumbled, struck his head on a metal railing, and fell unconscious. Marcus, believing Damian was faking, dragged him outside and left him in a dumpster enclosure. It was 2:00 AM in January; the temperature was 14°F. Damian died of hypothermia. The medical examiner testified that Damian would have survived the head injury but for the exposure. Marcus is charged with manslaughter (reckless homicide). Which of the following is MOST accurate regarding Marcus's liability?

- (A) Marcus is not liable because his initial use of force was justified as self-defense, and he had no duty to render aid to a trespasser he lawfully ejected.
 - (B) Marcus is liable because, having created the peril by rendering Damian unconscious, he had a duty to ensure Damian's safety, and his failure to do so was reckless.
 - (C) Marcus is liable only if the jury finds that he acted with purpose to cause death or serious bodily injury, because dragging an unconscious person into freezing temperatures is inherently dangerous.
 - (D) Marcus is not liable because Damian's death was caused by the cold weather, an intervening natural force that breaks the chain of causation.
 - (E) Marcus is liable only if the jury finds that a reasonable person in his position would have recognized the risk of death, because manslaughter requires only criminal negligence.
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QUESTION 2

Penelope agreed to drive the getaway car for a bank robbery planned by her boyfriend, Hector. At 9:55 AM, ten minutes before the planned robbery, Penelope suffered a panic attack. She drove to a gas station, called Hector, and said, "I can't do this. I'm leaving." Hector replied, "Fine. I'll find another way." Penelope drove home. Unbeknownst to Penelope, Hector had already entered the bank at 9:58 AM (two minutes early), brandished a

firearm, and shot a security guard who reached for his weapon. The guard died. Penelope is charged with felony murder (predicate offense: robbery) as an accomplice. Under the MPC, which of the following is Penelope's BEST defense?

- (A) Penelope effectively withdrew from the accomplice relationship before the crime was committed, and her withdrawal was voluntary and complete.
 - (B) Penelope lacked the purpose required for accomplice liability because she abandoned the enterprise before Hector committed the robbery.
 - (C) Penelope cannot be liable for felony murder because she did not personally cause the death and was not present when the shooting occurred.
 - (D) Penelope's panic attack rendered her actions involuntary under MPC §2.01, negating the actus reus of accomplice liability.
 - (E) Penelope is not liable because Hector's decision to enter the bank early was a superseding cause that broke the chain of accomplice liability.
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QUESTION 3

Detective Morrison, working undercover, cultivated a friendship with Terrence, a known fence for stolen electronics. Over three months, Morrison repeatedly asked Terrence to introduce him to "someone who could handle a serious job." Terrence refused each time. Finally, Morrison offered Terrence \$5,000 to "just make the introduction" nothing more." Terrence, facing eviction, agreed. Terrence introduced Morrison to "Viper," who was actually another undercover officer. Morrison told Viper he wanted to hire someone to murder his business partner. Viper agreed to commit the murder for \$20,000. All parties were arrested. Terrence is charged with conspiracy to commit murder. Under the MPC, which of the following is MOST accurate?

- (A) Terrence is not guilty because he lacked the specific intent to agree to commit murder; he only agreed to make an introduction.
 - (B) Terrence is guilty because he knowingly facilitated an agreement to commit murder, and the MPC requires only knowledge for conspiracy liability.
 - (C) Terrence is not guilty because Viper, the person he believed would commit the murder, was not actually capable of committing the crime, making the conspiracy factually impossible.
 - (D) Terrence is guilty if he believed Viper was a real hitman, because the MPC adopts a unilateral approach to conspiracy requiring only that the defendant agree with the intent to promote the crime.
 - (E) Terrence is not guilty because Morrison, as a law enforcement officer, could not legally agree to commit murder, and conspiracy requires at least two genuine parties.
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QUESTION 4

Regina, a nursing home administrator, was responsible for staffing the overnight shift. Due to budget cuts, she reduced staffing from four nurses to two for a 60-bed wing. Regina knew that two nurses could not adequately monitor all patients but believed the risk of serious

harm was low. One night, Patient Williams, who suffered from dementia and had a history of attempting to climb out of bed, fell and fractured his skull. A nurse was attending to another patient in crisis and could not reach Williams in time. Williams died. Expert testimony established that with four nurses, the fall would likely have been prevented. Regina is charged with negligent homicide. Under the MPC, which of the following is MOST accurate regarding Regina's mens rea?

(A) Regina acted purposely because she made a conscious decision to reduce staffing knowing it created a risk of harm.

(B) Regina acted knowingly because she was practically certain that her staffing decision would result in a patient's death.

(C) Regina acted recklessly because she consciously disregarded a substantial and unjustifiable risk that death would occur.

(D) Regina acted negligently because she should have been aware of a substantial and unjustifiable risk that death would occur, but she was not actually aware.

(E) Regina has no culpable mens rea because budget decisions are business judgments that cannot form the basis of criminal liability without proof of malicious intent.

QUESTION 5

Leonard, a schizophrenic, suffered from the delusion that his neighbor, Gary, was an alien who planned to abduct Leonard's children and "harvest their organs." Leonard's psychiatrist had prescribed antipsychotic medication, but Leonard stopped taking it because he believed the medication was "alien mind-control poison." One evening, Leonard saw Gary trimming his hedges. Leonard believed Gary was "scanning the house with laser eyes." Leonard retrieved a shotgun, approached Gary, and said, "I know what you are. You're not taking my kids." Gary raised his hands and said, "Leonard, it's me, Gary. Put the gun down." Leonard fired, killing Gary. Leonard is charged with first-degree murder. Under the MPC's insanity test (MPC §4.01), which of the following is Leonard's BEST argument?

(A) Leonard lacked the substantial capacity to appreciate the criminality of his conduct because his delusion prevented him from understanding that killing Gary was wrong.

(B) Leonard lacked the substantial capacity to conform his conduct to the requirements of law because his delusion compelled him to act.

(C) Leonard is not guilty because his failure to take medication was involuntary, and the resulting psychotic episode negates the voluntariness of his act.

(D) Leonard is not guilty because his delusion constitutes a mistake of fact that negates the specific intent required for first-degree murder.

(E) Leonard is guilty because he knew that killing another human being was legally wrong, as evidenced by his statement "I know what you are," which demonstrates awareness of wrongdoing.

QUESTION 6

Frankie agreed to help his cousin, Vinny, rob a convenience store. Frankie's role was to

disable the security camera by cutting its power cable. Frankie cut the cable at 11:50 PM. The robbery was scheduled for midnight. At 11:55 PM, Frankie saw a news report that a similar robbery in another city had resulted in the death of a clerk. Frankie panicked. He ran back to the store, reconnected the cable (restoring the camera), and left a note for the clerk reading "Someone may try to rob you tonight. Call police." Frankie then drove home. At 12:10 AM, Vinny entered the store, unaware the camera was working. The clerk, having found Frankie's note, had a firearm ready. When Vinny demanded money, the clerk shot and killed Vinny. Frankie is charged with attempted robbery and conspiracy to commit robbery. Under the MPC, which of the following is MOST accurate?

- (A) Frankie is not guilty of attempted robbery because he abandoned his efforts voluntarily and completely, renouncing his criminal purpose.
 - (B) Frankie is not guilty of conspiracy because Vinny's death terminated the agreement, and conspiracy requires at least two living parties.
 - (C) Frankie is guilty of attempted robbery because he completed a substantial step (cutting the cable) that strongly corroborated his criminal purpose, and his later actions cannot undo the attempt.
 - (D) Frankie is guilty of conspiracy but not attempt, because his withdrawal from the conspiracy was effective only if he communicated it to Vinny.
 - (E) Frankie is guilty of both attempt and conspiracy because his actions in restoring the camera and leaving the note demonstrate consciousness of guilt rather than genuine renunciation.
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QUESTION 7

Darius was driving home from a bar where he had consumed six beers over three hours. His blood alcohol content was 0.12 (above the legal limit of 0.08). While driving, Darius's phone rang. He looked down to see who was calling. When he looked up, a child, Marcus, age 6, had darted into the street chasing a ball. Darius swerved but struck Marcus, killing him. Expert testimony established that (1) a sober driver paying attention could have stopped in time, (2) a drunk driver paying attention could NOT have stopped in time because of impaired reaction speed, and (3) a sober driver distracted by a phone would NOT have seen Marcus in time to stop. Darius is charged with vehicular homicide, defined as "causing the death of another while operating a motor vehicle under the influence of alcohol." The statute is silent on mens rea. Under the MPC's default culpability provisions (Â§2.02), which of the following is MOST accurate?

- (A) Darius is guilty because vehicular homicide is a strict liability offense, and no mens rea need be proven regarding the death.
- (B) Darius is not guilty because his intoxication was voluntary, and voluntary intoxication cannot establish the recklessness required for homicide.
- (C) Darius is guilty if the jury finds that his decision to drive while intoxicated was reckless, and the death was a foreseeable consequence of that decision.
- (D) Darius is not guilty because the death was caused by his distraction (looking at the phone), not by his intoxication, breaking the causal chain.
- (E) Darius is guilty only if the prosecution proves he acted knowingly with respect to the

death, because the MPC requires at least knowledge for all homicide offenses.

QUESTION 8

Professor DeWolf assigns his Criminal Law class a paper analyzing the Model Penal Code's treatment of mistake of law. Student A argues that the MPC's approach is too restrictive because it only permits a mistake of law defense when the statute defining the offense is not "reasonably made available" or when the defendant "reasonably relied" on an official statement of the law. Student B argues that the MPC's approach is appropriate because it preserves the principle that "ignorance of the law is no excuse" while providing narrow exceptions for fairness. Student C argues that the MPC should adopt a "reasonable mistake of law" defense for all crimes, similar to mistake of fact. Under the MPC, which student's position is MOST consistent with the actual provisions of the Code?

- (A) Student A, because MPC §2.04(3) provides a defense for any mistake of law that negates the required mens rea, which is broader than the common law.
 - (B) Student B, because MPC §2.04(3) provides limited exceptions for reliance on official statements and when the statute is not available, but otherwise preserves the traditional rule.
 - (C) Student C, because MPC §2.04(1) treats mistake of law the same as mistake of fact when the mistake negates the required mental state.
 - (D) Student A and Student C are both correct because the MPC entirely abolishes the distinction between mistake of fact and mistake of law.
 - (E) Student B and Student C are both correct because the MPC permits a mistake of law defense whenever the mistake is reasonable, regardless of whether it negates mens rea.
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QUESTION 9

Tanya, age 17, lived with her mother, Brenda, and Brenda's boyfriend, Carl. Carl had physically abused Tanya for two years, including hitting her with belts, burning her with cigarettes, and threatening to kill her if she told anyone. One evening, Carl came home intoxicated and began screaming at Brenda. Tanya, in her bedroom, heard Carl say, "I'm going to kill you both tonight." Tanya believed Carl meant it. She took a kitchen knife, approached Carl from behind, and stabbed him in the back. Carl died. Subsequent investigation revealed that Carl was unarmed at the time, had never actually carried out his death threats, and had been drinking—his statement was likely hyperbole. Tanya is charged with second-degree murder. She raises self-defense. Under the MPC's self-defense provisions (§3.04), which of the following is MOST accurate?

- (A) Tanya is not entitled to self-defense because she used deadly force against an unarmed person, and deadly force is only justified when the attacker is using or threatening deadly force.
- (B) Tanya is entitled to self-defense if she actually believed that deadly force was necessary to protect herself from death or serious bodily injury, even if that belief was unreasonable.
- (C) Tanya is entitled to self-defense only if a reasonable person in her circumstances would have believed that deadly force was immediately necessary.
- (D) Tanya is not entitled to self-defense because she used force against Carl when he was not

posing an immediate threat”he was arguing with Brenda, not attacking Tanya.

(E) Tanya is entitled to self-defense because she was the victim of domestic abuse, and the MPC provides a special presumption that battered persons may use deadly force preemptively.

QUESTION 10

Rico and Dante agreed to rob a liquor store. Rico would be the lookout; Dante would take the money. During the robbery, the store owner, Mr. Chen, reached for a shotgun under the counter. Dante shot and killed Mr. Chen. Rico, outside, heard the gunshot and fled. Rico was arrested three blocks away. Rico is charged with felony murder (predicate: robbery). The jurisdiction follows the common law felony murder rule with the "in furtherance" requirement. Which of the following is Rico's STRONGEST argument against felony murder liability?

(A) Rico did not personally cause Mr. Chen's death and was not present inside the store when the shooting occurred.

(B) Rico's role as lookout was not a proximate cause of Mr. Chen's death because Rico did not encourage or assist the shooting.

(C) The killing was not "in furtherance" of the robbery because Rico had no reason to anticipate that Dante would use deadly force against an unarmed victim.

(D) Rico effectively withdrew from the felony when he fled after hearing the gunshot, terminating his liability for any subsequent acts.

(E) Rico lacked the mens rea for murder because he did not intend for anyone to die, and felony murder violates the principle of concurrence.

QUESTION 11

A state statute criminalizes "possession of a firearm by a convicted felon." The statute provides: "Any person who has been convicted of a felony under the laws of this state or any other jurisdiction and who knowingly possesses a firearm is guilty of a Class C felony." Jasper was convicted of felony theft in 2010. In 2024, Jasper's friend, Malik, asked Jasper to hold a duffel bag for "a few hours." Malik said, "Don't look inside. Just keep it safe." Jasper agreed. Police raided Malik's apartment and arrested Jasper, who was present with the duffel bag. Inside the bag was a loaded handgun. Jasper had not looked inside the bag and did not know it contained a firearm. Under the MPC's approach to possession offenses (Â§2.01(4)), which of the following is MOST accurate?

(A) Jasper is guilty because possession may be constructive, and he had control over the duffel bag.

(B) Jasper is not guilty because he did not know the bag contained a firearm, and the statute requires knowing possession of the firearm itself, not just the container.

(C) Jasper is guilty because he was reckless in failing to inspect the bag, and recklessness satisfies the knowledge requirement for possession offenses.

(D) Jasper is not guilty because he lacked the purpose to possess a firearm, and the MPC

requires purpose for all possession offenses.

(E) Jasper is guilty if a reasonable person would have suspected the bag contained contraband, because negligence satisfies the mens rea for possession.

QUESTION 12

Olivia, a corrections officer at State Prison, was assigned to death row. Inmate Williams was scheduled for execution by lethal injection in 72 hours. Olivia had befriended Williams over three years and believed he was innocent. Two days before the execution, Olivia unlocked Williams's cell door and said, "Walk out the back gate. There will be a car waiting." Williams walked out and escaped. Williams was recaptured 48 hours later. Olivia is charged with "aiding escape" and "conspiracy to commit escape." The aiding escape statute requires that the defendant "intentionally facilitate the escape of a prisoner." Olivia argues that she acted to prevent an injustice (Williams's execution) and that her actions were therefore justified under the necessity defense. Under the MPC's necessity defense (Â§3.02), which of the following is MOST accurate?

(A) Olivia has a valid necessity defense because she believed that preventing the execution of an innocent person was a greater good than preventing escape.

(B) Olivia does not have a valid necessity defense because the harm she sought to avoid (execution) was not imminent—the execution was 72 hours away.

(C) Olivia has a valid necessity defense only if Williams was actually innocent, because the necessity defense requires that the harm avoided be objectively greater than the harm caused.

(D) Olivia does not have a valid necessity defense because the legislature has already balanced the competing interests by authorizing capital punishment, and the necessity defense cannot be used to nullify legislative policy choices.

(E) Olivia has a valid necessity defense because her subjective belief that Williams was innocent is sufficient to establish that she acted to avoid a greater harm.

PART II: ESSAY 1 – POLICY (20 Points)

Instructions: Write a formal, well-organized essay of approximately 800-1000 words. Your essay should demonstrate mastery of the relevant doctrines, engage with philosophical underpinnings, and present a balanced critique.

PROMPT: THE MIXED THEORY OF PUNISHMENT AND THREE STRIKES PROPORTIONALITY

Professor H.L.A. Hart and Professor John Rawls have each articulated versions of a "mixed theory" of punishment that attempts to reconcile retributive and utilitarian justifications. Hart's version, in particular, separates the "general justifying aim" of punishment (utilitarian crime prevention) from the "distribution" of punishment (retributive limits requiring that only the guilty be punished and only proportionally). This mixed theory has been influential in American jurisprudence.

Your task: Critically evaluate the mixed theory of punishment as applied to the constitutional debate over "Three Strikes" sentencing laws. In your essay, you must:

1. **Summarize the doctrine:** Explain Hart's mixed theory, distinguishing between the general justifying aim (utility) and distributive principles (retribution/proportionality). Explain how Three Strikes laws operate (e.g., *Rummel v. Estelle*, *Lockyer v. Andrade*, *Ewing v. California*) and the proportionality challenge under the Eighth Amendment.
 2. **Provide a deep philosophical critique:** Argue either FOR or AGAINST the proposition that the mixed theory adequately resolves the tension between crime control (Three Strikes) and proportionality. Consider:
 - Whether the mixed theory is internally coherent or whether it collapses into one pure theory
 - Whether incapacitation of repeat offenders can be squared with "just deserts" proportionality
 - Whether the mixed theory provides meaningful guidance to courts reviewing Three Strikes sentences
 6. **Provide a rigorous counter-argument:** Present the strongest objection to your position and respond to it.
 7. **Conclude** with your assessment of whether the mixed theory should guide sentencing policy, and what limits (if any) it places on Three Strikes laws.
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PART III: ESSAY 2 – FACT PATTERN (30 Points)

Instructions: Analyze the following fact pattern in detail. Identify all potential criminal liability for each character. Discuss all relevant charges, defenses, and doctrines. Your answer should be thorough and demonstrate sophisticated understanding of causation, accomplice liability, and defenses.

FACT PATTERN: "THE BOTCHED ARMORED CAR ROBBERY"

Characters:

- **Dwayne "The Brain"** – The planner, age 42, no prior violent offenses
- **Marcus "The Trigger"** – The enforcer, age 29, three prior armed robbery convictions
- **Elena "The Lookout"** – The driver, age 24, no criminal record
- **Victor** – An armored car guard

ACT ONE: THE PLAN

Dwayne spent three months planning the robbery of an armored car that serviced the "First Federal Bank" every Tuesday at 10:00 AM. Dwayne recruited Marcus for his experience with firearms and Elena for her driving skills. Dwayne told Elena that the job was "a snatch-and-grab" involving "unmarked cash deliveries" and that no weapons would be used. Dwayne told Marcus the truth: that they would be robbing an armored car and that Marcus would need to "show the gun" to intimidate the guards. Dwayne explicitly instructed Marcus: "No shooting. The gun is for show only. If anyone resists, we run."

Elena agreed to drive the getaway car. Marcus agreed to serve as the "muscle." Dwayne

would approach the guards, take the cash, and hand it to Marcus, who would put it in the car.

ACT TWO: THE BOTCHED EXECUTION

On the morning of the robbery, Marcus consumed three lines of cocaine to "steady his nerves." At 9:45 AM, the three arrived at the bank. Elena parked the car in the designated spot. Dwayne and Marcus approached the armored car.

Victor, the guard, was unloading cash bags. Dwayne approached and said, "This is a robbery. Don't move." Victor reached for his radio. Marcus, experiencing cocaine-induced paranoia, believed Victor was reaching for a weapon. Marcus drew his firearm and shot Victor twice in the chest.

Dwayne screamed, "What the hell, Marcus? I said no shooting!" Dwayne grabbed Marcus and pulled him toward the car. Victor survived but suffered permanent paralysis from a spinal cord injury.

ACT THREE: THE AFTERMATH

Elena, hearing gunshots, panicked. She drove the car to the designated meeting point, but Dwayne and Marcus were not there. Dwayne had dragged Marcus to a nearby alley. Marcus, realizing what he had done, said, "I'm sorry, Dwayne. I lost it. The coke made me crazy." Dwayne replied, "You're on your own." Dwayne fled.

Marcus, still armed and paranoid, walked to a convenience store. He demanded the clerk give him the contents of the register. The clerk, seeing Marcus's gun, complied. Marcus took \$200 and left. He was arrested two hours later.

Charges under consideration:

1. Attempted robbery (the armored car)
2. Aggravated battery (Victor)
3. Attempted murder (Victor)
4. Armed robbery (the convenience store)
5. Conspiracy to commit robbery

Jurisdiction: The jurisdiction follows the Model Penal Code except where noted. The jurisdiction has NOT adopted the felony murder rule.

QUESTIONS FOR ANALYSIS:

A. (10 Points) Analyze Dwayne's liability for all charges. Focus particularly on:

- Accomplice liability under MPC Â§2.06 (purpose vs. knowledge)
- Whether Marcus's shooting of Victor is within the scope of the accomplice agreement
- The effect of Marcus's voluntary intoxication on Dwayne's liability
- Any defenses Dwayne might raise

B. (10 Points) Analyze Marcus's liability for all charges. Focus particularly on:

- Mens rea for attempted murder (purpose vs. knowledge)
- Whether voluntary intoxication can negate specific intent
- Whether Marcus's cocaine use was voluntary and its effect on his mental state

- The independent armed robbery of the convenience store

C. (10 Points) Analyze Elena's liability for all charges. Focus particularly on:

- The scope of her agreement (what did she know?)
 - Whether she can be liable for crimes she did not foresee
 - Whether her flight constitutes withdrawal or renunciation
 - The doctrine of natural and probable consequences (if applicable)
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PART IV: ESSAY 2.5 €” COMPARISON (14 Points)

Instructions: Write a detailed comparative analysis of the specified doctrine under the Model Penal Code versus the Common Law. Your analysis should be specific, cite relevant sections, and discuss policy rationales.

PROMPT: ATTEMPT LIABILITY €” MPC vs. COMMON LAW

Compare and contrast the Model Penal Code's approach to criminal attempt with the traditional common law approach. Your analysis must address:

1. The Actus Reus of Attempt:

- Common law: "Dangerous proximity" test vs. "Last act" test vs. "Physical proximity" test
- MPC: "Substantial step" test (MPC Â§5.01)
- Which approach is preferable and why?

5. The Mens Rea of Attempt:

- Common law: Specific intent to commit the target offense
- MPC: Purpose to engage in conduct or cause result (MPC Â§5.01(1))
- How does this apply to crimes with different mens rea elements (e.g., recklessness or negligence)?

9. Renunciation/Abandonment:

- Common law: Generally not a defense
- MPC: Complete and voluntary renunciation is a defense (MPC Â§5.01(4))
- Policy arguments for and against the defense

13. Impossibility:

- Common law: Factual impossibility is no defense; legal impossibility is a defense
- MPC: Abolishes the distinction; impossibility is not a defense if the conduct constitutes a substantial step (MPC Â§5.01(1)(a))
- Critique of the MPC's approach

17. Conclusion: Which approach better serves the purposes of criminal law? Consider deterrence, retribution, and the principle of legality.

END OF EXAMINATION

DEWOLF MODEL ANSWERS -- SET 2

ESSAY 1: POLICY QUESTION — Mixed Theory of Punishment & Three Strikes Legislation

GOAL

The prompt invites an examination of whether the so-called “Three Strikes” sentencing regime, particularly its imposition of life imprisonment upon a third felony conviction, can be reconciled with a Mixed Theory of Punishment. A Mixed Theory, properly understood, does not merely aggregate retributive and utilitarian justifications; it demands internal coherence, ensuring that each punishment is simultaneously *deserved* (retribution) and *efficacious* (utilitarian). The central doctrinal tension is whether a mandatory life sentence for a non-violent third felony—such as petty theft with a prior record—can satisfy both the backward-looking demand for proportional desert and the forward-looking goals of deterrence, incapacitation, and rehabilitation.

ANALYSIS

I. The Architecture of the Mixed Theory

The Mixed Theory, as articulated by scholars such as H.L.A. Hart and refined in the Model Penal Code’s sentencing provisions, posits that the justification for punishment as an institution rests on utilitarian grounds (crime prevention), while the *distribution* of punishment—the quantum imposed on a particular offender—must be constrained by retributive principles of proportionality. See MPC § 1.02(2) (stating purposes include “to prevent the commission of offenses” and “to give fair warning of the nature of the sentences that may be imposed”). This is not a mere compromise; it is a structural imperative. Retribution provides the ceiling (no punishment beyond what is deserved) and the floor (no punishment for the innocent), while utility fills the interior, selecting the precise sanction that maximizes social benefit within those bounds.

Three Strikes laws, however, invert this hierarchy. By mandating a life sentence upon a third qualifying felony, the legislature has effectively ceded proportionality to a rigid, arithmetic formula. The question is whether this formula can survive scrutiny under the Mixed Theory.

II. The Retributive Challenge: Proportionality and Desert

Retribution demands that punishment be proportionate to the *moral blameworthiness* of the offender and the *harm* of the offense. This is not a matter of simple *lex talionis*; it requires a nuanced assessment of culpability. A third strike for a non-violent property crime—say, stealing a pair of socks from a department store—presents a palpable tension. The offender’s blameworthiness, even with a prior record, does not escalate geometrically. The principle of proportionality, embedded in the Eighth Amendment’s Cruel and Unusual Punishment Clause (*Solem v. Helm*, 463 U.S. 277 (1983)), suggests that a life sentence for a minor property crime is grossly disproportionate.

Some courts, however, take Path A: they defer to legislative judgment, holding that recidivism itself enhances blameworthiness. The argument is that the offender, by persisting in criminal conduct despite prior punishment, demonstrates a heightened contempt for the

law, thus warranting escalated desert. *See, e.g., Rummel v. Estelle*, 445 U.S. 263 (1980) (upholding life sentence for three non-violent felonies totaling \$229.11). Other courts take Path B: they insist on a categorical proportionality review, examining whether the crime of conviction is so minor that the sentence “shocks the conscience.” *See, e.g., Solem*, 463 U.S. at 290-92 (requiring comparison of the gravity of the offense to the severity of the penalty). The doctrinal incoherence is manifest: the Supreme Court has never clearly resolved which path governs.

Under the Mixed Theory, Path B is more defensible. Retribution is not merely a tally of prior convictions; it is a moral judgment. A life sentence for a non-violent third strike may satisfy a crude notion of “just deserts” if one believes the offender has forfeited his claim to liberty. But the more refined retributivist position—associated with Kant and Hegel—insists that punishment must respect the offender’s dignity as a rational agent. Imposing a life sentence for a trivial theft treats the offender as a mere vector of risk, not a moral agent whose specific act must be condemned proportionally.

III. The Utilitarian Challenge: Deterrence, Incapacitation, and Cost

The utilitarian pillar of the Mixed Theory requires that punishment produce a net social benefit. Three Strikes laws are often defended on incapacitation grounds: locking away repeat offenders for life prevents future crimes. This has intuitive appeal, but the empirical evidence is equivocal. Because many offenders “age out” of crime by their forties, a life sentence imposed on a 35-year-old third striker may incapacitate them for decades during which their criminal propensity has naturally declined. The marginal deterrent effect is also questionable. A rational offender facing a potential life sentence for a third strike may be *over-deterred* from minor crimes but *under-deterred* from violent ones, since the penalty cannot escalate further. This is the “last period problem” familiar from game theory.

Furthermore, the fiscal cost is staggering. Incarcerating an elderly prisoner costs tens of thousands of dollars annually, funds that could be directed toward rehabilitation programs or crime prevention. The Mixed Theory, with its utilitarian component, cannot ignore this. If the state is spending resources to achieve negligible marginal deterrence and incapacitation of low-risk offenders, the punishment fails the utility calculus.

IV. The Principle of Legality and Notice

Finally, the Principle of Legality demands that citizens receive fair warning of the consequences of their actions. Three Strikes laws, on their face, satisfy this: the statute announces the penalty. But the *application* often raises concerns. Many Three Strikes statutes give prosecutors enormous discretion to charge or not charge prior strikes, and to choose which felony to file. This discretion can lead to arbitrary and discriminatory enforcement, undermining the rule of law. The Mixed Theory, which values consistency and predictability, must condemn such arbitrariness.

CONCLUSION

The Mixed Theory of Punishment cannot comfortably accommodate mandatory Three Strikes sentences for non-violent third felonies. The retributive principle of proportionality is violated when a life sentence is imposed for a minor property crime, and the utilitarian calculus is undermined by the high cost and low marginal benefit of incarcerating aging, low-risk offenders. A more defensible approach would retain Three Strikes as a *presumptive* sentencing enhancement, but allow judicial discretion to depart downward when the third strike is non-violent and the offender’s criminal history does not suggest a high risk of future harm. This would honor the Mixed Theory’s demand that punishment be both deserved and

useful, rather than a mechanical exercise in legislative vengeance.

ESSAY 2: FACT PATTERN — Botched Armored Car Robbery (Dwayne, Marcus, Elena)

GOAL

Analyze the potential criminal liability of Dwayne, Marcus, and Elena under the Model Penal Code and common law for the death of the armored car guard during a botched robbery. The central issues are: (1) whether the homicide constitutes murder or manslaughter; (2) the applicability of felony murder; (3) accomplice liability; and (4) the availability of defenses, particularly renunciation. The facts present a classic case of a plan gone awry, with a tragic death that may or may not have been intended.

ANALYSIS

I. Dwayne's Liability

Dwayne is the principal actor. He entered the bank, brandished a firearm, and during the course of the robbery, the guard was shot and killed. The critical factual ambiguity is whether Dwayne intentionally shot the guard, or whether the guard was killed accidentally during a struggle or by a ricochet.

Path A: Intentional Killing. If Dwayne intentionally shot the guard, he is liable for murder. Under MPC § 210.2(1)(a), murder is committed when the actor “purposely or knowingly” causes death. Dwayne’s act of pointing a firearm at the guard and pulling the trigger would satisfy the “knowingly” requirement if he was aware that death was practically certain to result. At common law, this would be murder with malice aforethought, either express (intent to kill) or implied (intent to cause grievous bodily harm). The death penalty or life imprisonment would be potential sentences, depending on jurisdiction.

Path B: Accidental Death During Felony. If the guard was killed accidentally—for example, Dwayne’s gun discharged during a struggle—the analysis shifts to felony murder. At common law, any death caused during the commission of a dangerous felony (robbery is a classic predicate) is murder, regardless of intent. MPC § 210.2(1)(b) adopts a more limited version: the actor is guilty of murder if he “is engaged in the commission of, or an attempt to commit, or flight after committing or attempting to commit robbery” and “in the course of such crime or flight, he ... causes the death of another.” However, the MPC adds a crucial defense: the actor must be shown to have acted with “recklessness” or “extreme indifference to the value of human life.” If the death was purely accidental and Dwayne took reasonable precautions (e.g., he did not point the gun at anyone), a court might find insufficient recklessness.

Under the common law felony murder rule, Dwayne would almost certainly be liable for murder, as the death occurred during the commission of a robbery. The rule is strict; no mens rea regarding the death is required. This is a doctrinal relic that the MPC sought to reform, but many states retain it.

II. Marcus's Liability

Marcus is the getaway driver. He did not enter the bank, nor did he shoot anyone. His liability hinges on accomplice liability. Under MPC § 2.06, a person is an accomplice if he “aids” or “agrees or attempts to aid” another in planning or committing an offense, and he acts with the “purpose of promoting or facilitating the commission of the offense.”

Path A: Accomplice to Robbery Only. If Marcus’s role was limited to driving the getaway car,

he is an accomplice to the robbery. The question is whether he is also an accomplice to the homicide. Under the common law “natural and probable consequences” doctrine, an accomplice is liable for all crimes that are the natural and probable consequence of the planned offense. If a death during an armed robbery is foreseeable, Marcus could be liable for murder as an accomplice. *See, e.g., People v. Luparello*, 187 Cal. App. 3d 410 (1986).

Path B: MPC’s Purpose Requirement. The MPC rejects the natural and probable consequences doctrine. Under MPC § 2.06(3), an accomplice must have the *purpose* to promote or facilitate the specific offense. Marcus’s purpose was to facilitate the robbery, not the homicide. Therefore, under the MPC, Marcus would be liable for robbery, but not for murder, unless the state can prove he acted with “recklessness” regarding the death. If Marcus knew Dwayne was armed and likely to use the weapon, a court might find that Marcus’s conduct manifested extreme indifference to human life, satisfying the MPC’s murder provision. However, this is a stretch; mere knowledge of a weapon does not equate to purpose to kill.

III. Elena’s Liability and the Renunciation Defense

Elena initially agreed to participate as a lookout but withdrew before the robbery occurred. Her liability depends on whether her withdrawal constitutes a valid defense.

Under MPC § 2.06(6)(c), an accomplice may avoid liability if she “terminates her complicity” prior to the commission of the offense and either (i) “neutralizes” her prior assistance, or (ii) “gives timely warning to the law enforcement authorities” or “otherwise makes proper effort to prevent the commission of the offense.” Elena’s act of calling Marcus and saying “I’m out” is insufficient under the MPC. She did not neutralize her assistance (she had already agreed to be a lookout, and her agreement may have emboldened the others). She did not call the police. Therefore, she likely remains liable as an accomplice to the robbery.

At common law, the defense of renunciation is even more limited. An accomplice must take “affirmative action” to prevent the crime, such as physically intervening or summoning authorities. A mere change of heart is not enough. *See, e.g., People v. Brown*, 26 N.Y.2d 88 (1970).

IV. The Felony Murder Rule and the “In Furthermore” Requirement

A final nuance: under the MPC, the death must occur “in the course of” the robbery. If the guard was killed during the robbery, this is satisfied. However, if the guard was killed after the robbery was complete and during flight, the MPC’s language covers flight as well. The common law is split. Some courts hold that the felony murder rule extends to deaths occurring during flight from the scene, while others require the death to occur during the commission of the felony itself.

CONCLUSION

Dwayne is likely liable for murder, either as an intentional killing or under the felony murder rule. Marcus, under the common law, may be liable for murder as an accomplice under the natural and probable consequences doctrine, but under the MPC, he is likely liable only for robbery. Elena’s withdrawal was insufficient to constitute renunciation; she remains liable as an accomplice to the robbery, but not to the homicide, absent proof of purpose or extreme recklessness. The case illustrates the profound doctrinal incoherence that persists in American homicide law, particularly the tension between the MPC’s mens rea requirements and the common law’s strict liability approach to felony murder.